

In keeping with this purpose, the proposed sanction should be “suitable and necessary” to enable the requesting party to obtain the object of its discovery. *Caryl Richards, Inc. v Superior Court* (1961) 188 Cal.App.2d 300, 304. See *Juarez v Boy Scouts of Am., Inc.* (2000) 81 Cal.App.4th 377, 388. Whatever penalty is imposed should be “appropriate to the dereliction, and should not exceed that which is required to protect the interests of the party entitled to but denied discovery.” *Deyo v Kilbourne* (1978) 84 Cal.App.3d 771, 793. Sanctions are awardable to parties, not their attorneys. *Poe v Diamond* (1987) 191 Cal.App.3d 1394, 1399. The trial court may impose sanctions for a pattern of discovery abuse. It is not limited to imposing sanctions for each violation of the rules governing depositions or other discovery methods.

The Court finds that all four Defendants have been derelict in their discovery obligations, but to varying degrees and with varying involvement of counsel. Notably absent from the thousands of pages before the Court is any representation that *at any time*, any of the counsel for any of the Defendants met or conferred with Plaintiffs’ counsel. Service of amended responses *may* cure issues and moot the need for further meeting and conferring, but given the record before the Court, that does not appear to have been the case and it was counsel’s obligation to follow up. Sanctions shall be awarded as follows:

- (1) From Manor Care and PES, jointly with counsel Petrullo, APC: \$4,000
- (2) From HCR Manor Care and PHS and current counsel Buchanan Ingersoll & Rooney: \$2,565.
This particular sanction is stayed and will not be imposed *if* counsel for these Defendants, in good faith, participates in further meeting and conferring to resolve the issues raised above that are not wholly resolved by this order **in person at a location of Plaintiffs’ counsel’s choosing**.

6. 9:00 AM CASE NUMBER: C24-01854

CASE NAME: REGINALD CANNON VS. MELISSA KATZ

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO SPECIAL INTEROGS AGAINST DEFS**

FILED BY: CANNON, REGINALD R.

TENTATIVE RULING:

Plaintiffs Reginald Cannon et al. bring this Motion (1) to Compel Further Responses to Special Interrogatories; (2) to Compel Verifications; and (3) for Monetary Sanctions Against Defendants Manor Care of Walnut Creek CA LLC (Manor Care), HCR Manor Care Services, LLC (HCR Manor Care), Promedica Employment Services, LLC (PES), and Promedica Health System, Inc. (PHS). All four Defendants filed oppositions.

Background

This is an elder abuse case with several defendants. This is one of originally seven—six after the withdrawal of one motion by Plaintiffs—discovery motions filed in this matter. The Court ruled the week prior on the first three to be heard.

On December 5, 2024, Plaintiffs served their Special Interrogatories, Set 1 on Defendants. At that

time, all relevant Defendants were represented by a single law firm. After a negotiated extension, Defendants served unverified responses to Plaintiffs' Special Interrogatories ("SROGs") Nos. 1-86 and 88-91 on February 7, 2025.² The parties met and conferred, and Defendants did not serve verifications. There is no evidence before the Court that Defendants at any time sent any response correspondence.

On January 28, 2026, at a Case Management Conference, the Court heard from the parties that there was voluminous discovery and that new counsel intended to supplement the discovery. The Court requested further meeting and conferring, noting that it did not wish to prepare for a motion that was mooted. The Court stated that the service of amended responses "doesn't mean you're entitled to sanctions, but they don't automatically go off calendar, but I would like the parties to meet and confer as much as they possibly can and see if ahead of the hearing you can communicate to the court any kind of at least narrowing of the issues."

On October 1, 2025, Plaintiffs filed the instant motion. On October 13, 2025, current counsel for HCR Manor Care and PHS substituted in. Manor Care and PES retained prior counsel. On March 3, 2026, PHS and HCR Manor Care served verified amended responses to the Requests for Production of Documents. All four relevant Defendants filed oppositions on March 6, 2026. The Court is unaware of any additional meeting and conferring that took place between January 28 and today.

Analysis

Mooting of the Motion

HCR Manor Care and PHS claim that service of verified amended responses renders this Motion moot. These verified amended responses were served over one year after the initial responses, five months after new counsel substituted in, and three days before the opposition to the Motion was filed. The verifications were untimely, rendering the substantive answers untimely. (*Appleton v. Superior Court* (1988) 206 Cal.App.3d 632, 636 ("Unsworn responses are tantamount to no responses at all.")) "In many cases involving untimely responses, the propounding party will take the motion off calendar or narrow its scope to the issue of sanctions. If the propounding party proceeds with the motion, however, the trial court has the discretion to rule on the motion." (*Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 409.) The Motion has been largely mooted with respect to PHS and HCR Manor Care, as they have served verified, amended responses.

Timeliness of the Motion

PES and Manor Care claim that the motion is premature because Plaintiffs have never received verified responses. PES and Manor Care may not indefinitely prevent Plaintiffs from receiving discovery by failing to submit verifications and declaring any resulting motions premature. A reasonable time has come and gone, and verifications are significantly delinquent. Defendant's citation to section 2031.300 is inapplicable to a motion relating to interrogatory responses. The requirement that a Motion to Compel may only be filed after service of verified responses does not

² Plaintiffs claim that Defendants failed to answer SROG 86. In fact, it would appear that they failed to answer SROG 87, not 86.

apply to this Motion.

Verifications

The Defendants' responses must be verified. Code Civ. Pro. § 2030.250. Manor Care and PES remain unverified as of this date. HCR Manor Care and PHS are recently amended. Plaintiffs' request for verified responses is therefore moot with respect to those two Defendants.

SROGs 86 and 87

Initially, the remaining issue related to SROG Nos. 86 and 87. SROG 86 seeks "each and every physical limitation [Kenneth] had immediately before he was admitted into" the subject facility, while SROG No. 87 seeks "each and every mental and/or cognitive limitation [Kenneth] had immediately before he was admitted into" the subject facility.

It's clear from the responses that Defendants initially erroneously copied SROG 86 to be word-for-word identical to SROG 87.³ HCR Manor Care and PHS have since corrected this error and responded to all requests.⁴

PES and Manor Care must answer SROG No. 87.

Supplementing Answers

By natural function of Defendants HCR Manor Care and PHS serving amended responses contemporaneously with their oppositions to this motion, there are now new issues that Plaintiffs have addressed in their reply. To the best of the Court's understanding, this arises because the prior unverified responses were joint responses with Manor Care and PES, and the new separate responses are served by each separate entity. In the course of that amendment, HCR Manor Care and PHS have asserted new objections (which will be addressed immediately below) and provided *fewer* answers than previously, claiming that they are entities without the relevant information held by the subsidiaries. While Plaintiffs cannot seek remedy for Manor Care's non-compliance with its verification obligations by insisting that an entity *without* knowledge respond to discovery, it is also true that Defendants cannot pretend to lack knowledge simply because a subsidiary holds that knowledge closer.

What is not clear to the Court at this stage is where the answers to each of these questions lies with respect to various types of information. In other words, there are certainly areas where HCR Manor Care and PHS plausibly cannot respond to SROGs, but there are also areas where—by way of contracts, statutory obligations, or corporate structure—HCR Manor Care and PHS *do* have possession, custody, or *control* of information responsive to SROGs. As noted above, at this point, the breadth of the dispute is far too wide for the Court to address it piece by piece. Moreover, it does appear that Plaintiffs have been attempting to take depositions that would address corporate

³ This is apparently such an easy mistake to make, that Plaintiffs did the same thing in their *brief*, although not in their Separate Statement.

⁴ Plaintiffs now take issue with these Defendants' supplemental responses, which the Court addresses immediately below.

structure and responsibility since August 2025 and have a motion set for April 2, 2026 on that very matter. Defendants' failure to provide knowledgeable deposition witnesses has prolonged and stymied this area of discovery. Defendants must provide relevant documents in their possession, custody, or control.

Objections

Waiver of Objections

Plaintiffs initially sought to compel verified answers without objection, arguing that the lack of timely verifications waived HCR's right to assert objections. This is not correct. As Defendants indicate, where objections and substantive responses are served simultaneously, timely objections are not waived. (*Food 4 Less Supermarkets, Inc. v. Superior Court (Fletcher)* (1995) 40 Cal.App.4th 651, 657-658 ("Defendants did serve their responses within the statutory time period. The lack of verification did not render their objections untimely.")). Plaintiffs appear to concede this point. The Court will not order new responses without *any* objections.

Newly Asserted Objections by PHS and HCR Manor Care

Finally, Defendants HCR Manor Care and PHS appear to assert new objections in their amended responses. They have provided no authority for them to do so at this belated stage. It is again, however, not clear whether these objections serve as the basis for any withheld documents. To the extent they do, absent some compelling showing from HCR Manor Care and PHS, they have been waived.

Sanctions

Under Code of Civil Procedure section 2023.010(e),(f),(h), (i) it is a misuse of discovery to make, "without substantial justification, an unmeritorious objection to discovery, " to make "an evasive response to discovery" and to make or oppose "unsuccessfully without substantial justification a motion to compel or to limit discovery," or to fail to meet and confer to resolve discovery disputes informally. Section 2023.020 states that the Court "**shall** impose a monetary sanction ordering that any party or attorney who fails to confer as required pay the reasonable expenses, including attorney's fees, incurred by anyone as a result of that conduct." Additionally, section 2030.300 provides that the Court "**shall** impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust."

One of the basic purposes for imposing sanctions is to compel disclosure of discoverable information. See, e.g., *Marriage of Economou* (1990) 224 Cal.App.3d 1466, 1475 (court's discretion to impose sanctions "must be exercised in a manner consistent with the basic purposes of such sanctions: to compel disclosure of discoverable information"); *Kaplan v Eldorado Ins. Co.* (1976) 55 Cal.App. 3d 587, 591 (discovery sanctions enable party "to obtain evidence in the control of his adversary in order to further the efficient, economical disposition of cases according to right and justice on the merits").

In keeping with this purpose, the proposed sanction should be "suitable and necessary" to enable the

requesting party to obtain the object of its discovery. *Caryl Richards, Inc. v Superior Court* (1961) 188 Cal.App.2d 300, 304. See *Juarez v Boy Scouts of Am., Inc.* (2000) 81 Cal.App.4th 377, 388. Whatever penalty is imposed should be “appropriate to the dereliction, and should not exceed that which is required to protect the interests of the party entitled to but denied discovery.” *Deyo v Kilbourne* (1978) 84 Cal.App.3d 771, 793. Sanctions are awardable to parties, not their attorneys. *Poe v Diamond* (1987) 191 Cal.App.3d 1394, 1399. The trial court may impose sanctions for a pattern of discovery abuse. It is not limited to imposing sanctions for each violation of the rules governing depositions or other discovery methods.

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7. 9:00 AM CASE NUMBER: C24-02439

CASE NAME: SHERMAN KING VS. AUGUSTINE REDD

***HEARING ON MOTION IN RE: SANCTIONS**

FILED BY: KING, SHERMAN

TENTATIVE RULING:

Plaintiff Sherman King, in pro per, brings this Motion for Sanctions pursuant to Code Civil Procedure section 128.7, alleging that counsel for Defendants Augustine Redd and Darnell Redd made false statements. It is unclear the pleading to which he refers, but it appears to be the Response to the Order to Show Cause filed August 18, 2025. Defendants have responded with an extremely brief filing.

“Section 128.7 requires that all pleadings filed with the court be signed by an attorney of a represented party or, if the party is not represented by counsel, by the party. (§ 128.7, subd. (a).) The signing of a filed pleading constitutes a certification by the person signing it that after a reasonable inquiry, the pleading (1) is not being presented for an improper purpose; (2) contains positions that are not frivolous; (3) alleges factual matter having evidentiary support; and (4) contains denials of factual allegations having evidentiary support. (*Id.*, subd. (b).) The court, after proper statutory notice, may impose sanctions upon the attorneys, law firms, or parties who have improperly certified a pleading in violation of the statute. (*Id.*, subd. (c).)